IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.6

COMP.APPL/217(CH)2025, COMP.APPL/219(CH)2025
And
CA (CAA) No. 28/Chd/Hry/2025
(1st Motion)

IN THE MATTER OF:
Okaya Power Pvt. Ltd. & Ors. ... Petitioner

Under Section: 230-232, CA 2013
Rule: 11 of NCLT Rules, 2016

Order delivered on 30.10.2025

CORAM:
SHRI. K. K. SINGH, **SHRI. K. BISWAL,**
HON'BLE MEMBER (T) **HON'BLE MEMBER (J)**

PRESENT:-
For the Applicants in COMP.APPL/217(CH)2025, COMP.APPL/219(CH)2025 : Adv. Atul V Sood, Adv. Rohan Sood, Adv. Chandni Ghatrak

For the Respondent : Adv. S. Shiva

ORDER

COMP.APPL/217(CH)2025

This is the Company Application filed by one of the Applicant Company Microtek International Private Limited being Creditor to the Petitioner Company in CA (CAA) No. 28/Chd/Hry/2025 for recalling the order dated 29.08.2025 in the 1st Motion Company Petition. We have heard the Ld. Counsel Mr. Atul V. Sood appearing for the Applicant Company herein. He submits that the Petitioner Company in CA (CAA) No. 28/Chd/Hry/2025 i.e. Okaya Power Pvt. Ltd. & Ors. are basically managed by Gupta Families and that in the Applicant Company herein Gupta families and Aggarwal families are having shareholding at 50-50% and that now recently in the month of October, 2024, Gupta family has exited from this Company as a Director and

now the Applicant Company is being managed by the Aggarwal family. He further submits that the Applicant Company has not been informed of any such proposal of Scheme of Arrangements which requires Scheme of Demerger and Amalgamation. In the context, the present application is being filed for seeking recalling the order. He also submits that after following the order in the first motion application, now the Petitioner Companies have also filed the Company Petition bearing CP (CAA) No.41/Chd/Hry/2025 (2nd Motion), which is also listed today and in respect thereof, a separate application COMP.APPL/218(CH)2025 is filed to implead the Applicant as Respondent party therein. We have heard also Mr. S. Shiva, Advocate appearing for the Respondent herein (who are the Petitioner Companies in the matter of 230-232 petitions). He accepts the notice and raises the preliminary objection that such application is not maintainable. Be that as it may, the Respondent herein to file the reply within two weeks with a copy in advance to the counsel opposite. Rejoinder thereto, if any, be filed within one week thereafter, with a copy in advance to the counsel opposite. List the matter for further consideration on **11.12.2025**.

COMP.APPL/219(CH)2025

This application has been filed by Microtek New Technologies Private Limited, which is a subsidiary of Microtek International Private Limited which has filed similar application COMP.APPL/217(CH)2025. We have heard Mr. S. Shiva, Advocate appearing for the Respondent herein. He accepts the notice. Therefore, the requirement of service of notice is dispensed with. Reply to be filed within two weeks with a copy in advance to the counsel opposite.

Rejoinder thereto, if any, be filed within one week thereafter, with a copy in advance to the counsel opposite. List the matter on **11.12.2025.**

Sd/-

(K. K. SINGH)
MEMBER (TECHNICAL)

Sd/-

(K. BISWAL)
MEMBER (JUDICIAL)

Mamta 30.10.2025